

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #04	CCRB Case #: 201602851	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/02/2016 2:07 AM	Location of Incident: In front of the 17th Precinct stationhouse	18 Mo. SOL 10/2/2017	Precinct: 17
Date/Time CV Reported Sat, 04/02/2016 2:35 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/05/2016 8:33 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Ryan	30840	933309	017 PCT
2. SGT Sherwin Ogbewe	184	942287	017 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Nielsen	16546	937181	017 PCT
2. SGT Baqar Shah	3748	935728	017 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Ryan	Abuse: Police Officer Daniel Ryan threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . SGT Sherwin Ogbewe	Force: Sergeant Sherwin Ogbewe used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Sherwin Ogbewe	Discourtesy: Sergeant Sherwin Ogbewe spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On April 2, 2016, § 87(2)(b) filed this complaint in person at the 17th Precinct Stationhouse in Manhattan. He also called IAB a couple of hours later and filed a complaint under Log#16- 12163. The complaint was received by the CCRB on April 5, 2016.

On April 2, 2016, at approximately 2:07 AM, § 87(2)(b) was walking towards 3rd Avenue on East 51st Street towards the subway station on 3rd Avenue and East 53rd Street in Manhattan. As he walked by the 17th Precinct stationhouse, § 87(2)(b) observed a marked patrol van backing up towards the front entrance of the stationhouse. The van reversed quickly, and appeared to nearly hit a female pedestrian walking in front of § 87(2)(b) along the sidewalk. § 87(2)(b) stopped and complained to Sgt. Sherwin Ogbewe, who was standing by the entrance of the stationhouse, regarding the van's driving. PO Daniel Ryan and PO Brian Neilson stepped out of the van. PO Neilson removed a prisoner from the van and escorted him into the stationhouse while PO Ryan approached § 87(2)(b). PO Ryan allegedly told § 87(2)(b) "If you don't shut your mouth and keep walking, you'll wake up in the ER (**Allegation A**).” After further admonishing the officers for lack of professionalism, § 87(2)(b) turned away and continued to walk towards 3rd Avenue when Sgt. Ogbewe allegedly shoved him to the ground from behind, aggravating an injury to his knee (**Allegation B**). Sgt. Ogbewe allegedly stated “I told you I would fuck you up (**Allegation C**).” § 87(2)(b) got up and walked away, however he returned shortly to the stationhouse and requested an ambulance. § 87(2)(b) was removed to § 87(2)(b). § 87(2)(b) was not summonsed or arrested as a result of this incident.

Video Footage

Surveillance footage was obtained from Treehaus, on 830 3rd Avenue, a restaurant across the street from the 17th Precinct stationhouse and from 850 3rd Avenue, which face the stationhouse from the east corner of 3rd avenue (see Board Review: Video Footage). While footage from both sources captures part of the interaction, neither captures the alleged misconduct. A camera by the Fire house next to the stationhouse was determined to belong to the 17th Precinct and not be recording and surveillance cameras from the parking garage across the street did not capture the incident. Video footage obtained for the incident is blurry. While the footage corroborates the marked van backing up by a pedestrian and § 87(2)(b)'s subsequent interaction with officers, the quality of the footage is poor. While § 87(2)(b) does appear to fall to the ground, it is not possible to determine from the footage whether the actions of an officer caused this fall.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- A notice of claim was filed by attorney § 87(2)(b) on behalf of § 87(2)(b). § 87(2)(b) is seeking \$1,000,000.00 for injuries. § 87(2)(b) has not testified at a 50H hearing regarding his claim as of June 13, 2016.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint with the CCRB.
- Sgt. Ogbeweale has been a member of service for nine years. He was the subject of two previous CCRB cases with a total of five allegations. In Case 201307940, an allegation of a search of a person was substantiated against Sgt. Ogbeweale. The CCRB recommended Command Discipline in this case. § 87(2)(g)
- PO Ryan has been a member of service for twelve years. He was the subject of one previous CCRB case with one allegation of force which was exonerated. § 87(2)(g)

Potential Issues

While § 87(2)(b) signed HIPAA forms during his interview statement, he declined to initial release of all information on the forms. § 87(2)(b) did not provide records and the investigation was unable to obtain records § 87(2)(g).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) has provided consistent testimony that the subject officer that shoved him was Sgt. Ogbeweale. He described him and identified him in a photo. § 87(2)(g)

§ 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Daniel Ryan threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) was walking along the sidewalk in front of the 17th Precinct stationhouse and that he had several alcoholic drinks that evening. § 87(2)(b) observed a female pedestrian ahead of him. It is undisputed that PO Ryan was reversing into a parking spot adjacent to the sidewalk. It is undisputed that § 87(2)(b) engaged in a verbal dispute with Sgt. Ogbeweale who was guiding PO Ryan's parking and later PO Ryan once he exited the van as to the fact that he could have struck the female pedestrian.

§ 87(2)(b) was interviewed at the CCRB on April 7, 2016 (See Board Review, Civilian Statements). During the verbal dispute, § 87(2)(b) alleged that PO Ryan told him to mind his own business, and further told him that "If you don't shut your mouth and keep walking, you'll wake up in the ER."

Sgt. Ogbewe was interviewed at the CCRB on April 27, 2016. PO Ryan was interviewed on May 4, 2016 (See Board Review, MOS Statements). Both Sgt. Ogbewe and PO Ryan characterized § 87(2)(b) as intoxicated as he approached them and began arguing about PO Ryan's parking of the vehicle. § 87(2)(b) directed statements such as "Who the fuck was driving? Where did he get his license?" Both PO Ryan and Sgt. Ogbewe denied making any remarks threatening § 87(2)(b) with any use of force.

Sgt. Shah was interviewed on May 11, 2016 (See Board Review, MOS Statements). Sgt. Shah was walking into the stationhouse when he noticed § 87(2)(b) standing by the entrance, arguing with Sgt. Ogbewe and other officers. Sgt. Shah believed § 87(2)(b) was intoxicated based on his slurred speech and swaying movement. Sgt. Shah could not identify any other officers present during the incident. He stated that Sgt. Ogbewe told § 87(2)(b) to "Move along." He denied any officer threatened § 87(2)(b) with the use of force.

§ 87(2)(g)
Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B- Force: Sergeant Sherwin Ogbewe used physical force against § 87(2)(b)

Allegation C- Discourtesy: Sergeant Sherwin Ogbewe spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after arguing with Sgt. Ogbewe and PO Ryan, he turned away from them to continue walking to 3rd Avenue. Sgt. Ogbewe was approximately an arm's length away on § 87(2)(b)'s left side. § 87(2)(b) alleged that Sgt. Ogbewe violently shoved § 87(2)(b) with both hands on his back and shoulders and § 87(2)(b) landed on his right side on the sidewalk. Sgt. Ogbewe then allegedly told § 87(2)(b) "I told you I would fuck you up." § 87(2)(b) sat on the floor in shock for a few moments before standing up and continuing to 3rd Avenue. He returned to the stationhouse approximately ten minutes later and told a desk sergeant he could not identify that he was in pain and needed an ambulance. He was taken to § 87(2)(b). § 87(2)(b) sustained a bruise to his left arm. § 87(2)(b)

Sgt. Ogbewe and PO Ryan noted that once § 87(2)(b) argued with them, they both told him to leave, and § 87(2)(b) stepped within a foot of Sgt. Ogbewe with closed fists. Sgt. Ogbewe alleged that § 87(2)(b) called him a "Nigger." Sgt. Ogbewe told him to leave and § 87(2)(b) stated, "You can't fucking do nothing to me." Sgt. Ogbewe took a step back, and PO Ryan stepped between § 87(2)(b) and himself (Sgt. Ogbewe) and separated them. Sgt. Ogbewe described this as putting one hand on each of them and pushing them apart from each other. In the process, § 87(2)(b) fell to the floor. Sgt. Ogbewe denied making physical contact with § 87(2)(b) during the incident, and could not determine whether § 87(2)(b) fell on account of his intoxicated state and losing balance or on account of being moved by PO

Ryan. Sgt. Ogbewele asked if § 87(2)(b) was alright. Sgt. Ogbewele denied using the expletive “Fuck” toward him or hearing PO Ryan use it. § 87(2)(b) left. Approximately twenty minutes later, § 87(2)(b) returned to the stationhouse yelling incoherently and cursing. § 87(2)(b) did not appear to recognize Sgt. Ogbewele. Sgt. Ogbewele requested an ambulance to removed § 87(2)(b) to § 87(2)(b) on account of his behavior, stating he was an emotionally disturbed person. Sgt. Ogbewele stated he made the decision to remove § 87(2)(b) based on his aggressive, incoherent behavior and that § 87(2)(b) did not request an ambulance.

PO Ryan corroborated Sgt. Ogbewele’s testimony overall. He did not recall § 87(2)(b) making any offensive racial remarks to Sgt. Ogbewele. PO Ryan was not present for § 87(2)(b) § 87(2)(b)s interaction at the stationhouse the second time.

Sgt. Shah did not recall the incident in detail, only stating that he observed § 87(2)(b) walking right up to Sgt. Ogbewele. Sgt. Ogbewele backed up and told § 87(2)(b) to move along. Other officers “assisted” § 87(2)(b) in moving along and § 87(2)(b) fell. However, Sgt. Shah couldn’t recall if § 87(2)(b) fell on his own or if he fell as the result of physical contact with any officers. He did not hear any profanity used against § 87(2)(b)

As discussed in the video footage section, the video has no audio and shows § 87(2)(b) falling to the ground. However, the footage is poor quality § 87(2)(g)

§ 87(2)(g)



850 3rd Avenue.mp4



Treehaus 830 3rd avenue.mp4

§ 87(2)(g)

Therefore it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Squad: 4

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

